

example; for by this, when slanders are presented instead of complaints, that is but to set divisions between the king and his great magistrates, to discourage judges, and vilify justice in the sight and mouths of all the people. Therefore I beseech your lordships to pardon me, if I be too long, and suffer me to shew your lordships what this court, in like cases, hath done.

In the second year of his majesty's reign, when sir Edward Coke, according to his place, informed against Foorth in this court, *ore tenus*, for petitioning his majesty against the last Lord-Chancellor, for granting an injunction for staying of a suit at the common law, (which your lordships know how necessary it is) he being convicted upon his own confession, received a sharp censure. I will conclude with this one, and I shall desire your lordships, in this place, to hear it read; and then do humbly beseech your lordships to hear the gentleman at the bar, either for his defence, or excuse.

Then Wraynham's Examinations were read in this Book and Epistle.

Then he was charged with these words following, in the end of his Epistle to his majesty: 'He that judgeth unjustly, must, to maintain it, speak untruly; and the height of authority maketh men to presume.' Also, in shewing of his majesty reasons why the Master of the Rolls was faulty, he said, 1. The master of the rolls had omitted many of his material proofs. 2. He shifted off other some. 3. That he sometimes wrested the equity of his cause. 4. That he did falsely cite Fisher's proofs. 5. That he grounded the report upon the deposition of witnesses that swore absurdities, untruths, and mere impossibilities. And, lastly, as if the report had been condemned and damned before to the pit of hell, he said it was raised as *ab inferno*.

In his Epistle to his majesty, he is charged with these words: 'I understand my Lord-Chancellor hath begged my pardon: it is outwardly the shew of a great heart, but inwardly it argueth a guilty conscience; otherwise, if first I had been found guilty, and his lordship should then have interceded with his majesty for me, it had been an argument of an indulgent nature; but to beg pardon where there is no need, was manifestly done to avoid an hearing, and not in pity towards me; for he that despoils me of my goods, I will not trust him with my person. And therefore, far be it from me to hope, or trust in his goodness: I disclaim his favour, and infinitely deplore the judgment of his majesty.'

And in the conclusion of his Epistle were these words: 'I desire to suffer at your gates, if I shall dare to slander so great and eminent a judge, unto so great and wise a king. If he should not desire to reward the Fishers for their fraud and perjuries, I know not why he should have rucked all out of joint. My lord, with this his last cunning and rhetorick, hath polluted his unjust proceedings against me; for my lord's gesture and pronunciation in his speech is wanting in my writing, out of which

'a cloudy mist may rise to hide the verity of your princely judgment.—I could never see by what reasons or words his lordship hath coloured his dealings to excuse himself unto your majesty, understanding only a piece, and not the whole from your majesty. This must move me most humbly to beseech your majesty to save my wife and children; and out of your princely justice to appoint a day of hearing, whereby there shall appear unto your majesty, as well the sincerity of my affirmations, as the unsoundness of his lordship's actions. For I never sought corners, but openly, and sometimes in my lord's presence, have notified and complained of my wrongs, and desire a public hearing before your majesty, which the greatest subject dares not do without truth and justice.'

And in another place, Wraynham saith, 'My lord chancellor proves nothing by record, nor delivers any thing by writing, to answer the things objected against him; but would hide himself from the eyes of your majesty's justice.'

His majesty saith, though he receive petitions from his subjects against his highest justices; yet he will have his judges know, that they are subject to his account only, and to none else upon earth. His majesty received this petition on Good-Friday last, in which this gentleman hath so far exceeded the measure of an humble complaint, that I must appeal to your lordships against him.

Then was Foorth's precedent read, bearing date 14th Nov. termino Mich. 2 Jac. 1. And likewise Foorth's two last Petitions against my lord-chancellor, touching which reference is had. And the lords asked Mr. Wraynham what he could say for himself.

Mr. Wraynham. Right honourable, and my very good lords; from a man so perplexed with so many miseries, what can be expected? and what marvel, if I should falter, or might let fall any speech that might seem uncomely? My lords, I know not how to behave myself, I will not willingly offend any, but especially the king's most excellent majesty; yet nature commands me to defend myself, for it cannot be thought he can be faithful to another, that is not so to himself. And therefore I humbly desire that what I offer in extenuation, or defence, that neither the meanest that hear it, nor your lordships, which are to judge of it, would take it offensively. My Book consisteth of three parts. 1. An Epistle to his majesty. 2. The body of the book, which relateth the truth of all the proceedings. And, 3. a conclusive Speech in the nature of an epilogue.

Touching the body of the Book, and the truth of the cause, I conceive it not now called in question, for I think your lordships will not enter into the particulars; but because it hath pleased Mr. Attorney to speak something of it, I will not be silent. My accusations, my lords, are set forth in two things: 1, that the complaint is of the right-hon. the lord-chancellor. 2. That it is in bitter and unreverend terms.—